

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. _____

(First, Middle and Last name)

DEFENDANT

ORDER TO SEAL ARREST UNDER ACT 1460 OF 2013;

A.C.A.16-90-1401, Et. Seq.

Before the Court is the Petition of the Defendant to seal his/her record.
The Court finds and orders as follows:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. §

2. More than one (1) year has passed since the Defendant was arrested
and neither the prosecuting attorney nor the city attorney has filed
charges against the Defendant for the above referenced arrest(s).
3. The Defendant has paid all filing fees required to be paid with the
filing of this Petition mandated by A.C.A §16-90-1419.

4. ☐ Defendant has no pending felony charges in any state or federal court; or

☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

5. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq)

6. The preponderance of the evidence shows that the granting of this Petition does not place the public at risk and it does further the interests of justice.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to seal the above referenced arrest(s) pursuant to A.C.A. §16-90-1409 should be, and hereby is GRANTED.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information, the Administrative Office of the Courts, the prosecuting and/or city attorney as the case may be, the District Court Clerk, if applicable, and the arresting agency. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB _____

FBI No. (if known) _____